

Congressional Attention to Abortion after *Dobbs*: How Representational and Electoral Incentives Selectively Shape Issue Attention

May 6, 2026

Abstract

Abstract: Landmark Supreme Court rulings can reshape policy, rights, and public opinion, but their effects on congressional issue attention remain less clear. We argue that such rulings do not uniformly reshape congressional attention; instead, they do so selectively, depending on how legislators' representational and electoral incentives align. We test this argument in the case of *Dobbs v. Jackson Women's Health Organization* (2022). We argue that, after *Dobbs*, abortion attention increased only when gender-linked representational considerations and party-based electoral incentives converged. These incentives aligned for female Democrats, but female Republicans faced electoral risks in foregrounding abortion, while male legislators faced weaker gender-linked representational incentives. Using nearly 1.6M statements from U.S. House committee hearings, we leverage the leak of the draft opinion in a difference-in-differences design that estimates differential changes in abortion attention across party and gender. Pre-treatment trends show no systematic differences. After the leak, female Democrats increased abortion-related references relative to female Republicans, with no change among male legislators.

Word Count: 3,000

Key Words: congress, abortion, issue attention, representation

On May 2, 2022, a draft opinion in *Dobbs v. Jackson Women’s Health Organization* was leaked to the public. Two months later, the Supreme Court issued its official decision, overturning *Roe* and *Casey* and eliminating the federal constitutional right to abortion. In the wake of *Dobbs*, scholars have examined how the ruling affected voters’ attitudes toward abortion and the Court (Clark, Paluck, Westwood, Sen, Malhotra and Jessee 2024; Gibson 2025; Levendusky, Patterson Jr, Margolis, Pasek, Winneg and Jamieson 2024), as well as candidates’ campaign platforms (Meisels 2025). Existing evidence shows a sharp and durable partisan divergence: Republicans’ trust in and perceived legitimacy of the Court increased, while Democrats’ evaluations declined across each dimension (Clark et al. 2024; Levendusky et al. 2024; Gibson 2025). The ruling also reshaped candidates’ campaign platforms, with Democratic primary candidates increasingly emphasizing abortion while Republican primary candidates attempted to avoid the issue (Meisels 2025).

The extent to which landmark Supreme Court rulings influence congressional issue attention remains unclear. We argue that such rulings are unlikely to alter congressional issue attention uniformly. Instead, we posit that judicial decisions reallocate attention selectively, depending on whether legislators’ representational and electoral incentives align. We examine this argument in the case of *Dobbs*. Because the decision generated intense media attention (Levendusky et al. 2024), polarized public opinion along party lines (Clark et al. 2024; Levendusky et al. 2024; Gibson 2025), and produced immediate policy consequences (Gardner, McCrary and Spencer 2025; Simonovits, Doherty and Bor 2025), it provides a useful case for testing whether a major judicial intervention changes congressional attention. In the case of *Dobbs*, we expect legislators to increase attention to abortion only when gender-based representational incentives and party-based electoral incentives converge.

First, we expect legislators’ response to *Dobbs* to be shaped by their gender identity. Because female legislators are more likely than male legislators to prioritize gender-salient issues (Lawless 2015; Swers 2023), they have a gender-based incentive to highlight abortion after *Dobbs*. Accordingly, we expect female legislators to have stronger incentives than male legislators to elevate attention to abortion, even if they frame the issue differently. Although female Republicans are

likely to frame their abortion references in a pro-life direction and female Democrats in a pro-choice direction, their gender identity should lead both groups to elevate attention to the issue.

At the same time, however, we also expect legislators' response to *Dobbs* to be conditioned by their electoral incentives (Mayhew 2004). Existing work highlights that, after *Dobbs*, legislators' abortion-related electoral environment varied by party: Republican candidates largely deemphasized abortion on the campaign trail, while Democrats elevated the issue (Meisels 2025). This pattern suggests that Republican candidates anticipated electoral costs from foregrounding abortion, whereas Democrats anticipated potential electoral gains from doing so. And Republican candidates were correct to anticipate an electoral penalty: in the 2022 midterm elections, their vote share was, on average, five percentage points lower in states with abortion-related measures on the ballot (Gardner, McCrary and Spencer 2025). Collectively, these findings suggest that Republican candidates both anticipated and faced an electoral penalty for highlighting abortion.

Therefore, we argue that legislators increased their attention to abortion after *Dobbs* only when these two incentives—gender and electoral—converged. This alignment occurred only for female Democrats. Female Republicans faced electoral risks in foregrounding abortion, and male legislators of both parties faced weaker gender-linked representational incentives. Accordingly, we expect female Democrats to increase their attention to abortion after *Dobbs* relative to female Republicans, with no change among male legislators.

To evaluate these expectations, we use a bigram classifier to identify abortion references in nearly 1.6 million statements from U.S. House committee hearings spanning the 105th (1997) through the 119th (2025) Congresses. We employ difference-in-differences (DiD) specifications to estimate changes in abortion attention following *Dobbs*. We analyze *New York Times* coverage of abortion to show that legislators were most likely “treated” by the leaked draft (May 2, 2022). Because all legislators were exposed to the leak, our design does not compare treated versus untreated units; rather, the causal estimand captures the average difference in the within-legislator change in abortion attention from pre- to post-*Dobbs* between Democrats and Republicans, estimated separately for female and male legislators.

Numerous tests confirm that, prior to the leak, there were no systematic differences in abortion references by gender or party. After *Dobbs*, female Democrats increased their abortion-related references by approximately two percentage points relative to female Republicans, with no change among male legislators. To ensure that the observed changes in abortion attention are specific to *Dobbs*, we examine six non-abortion policy areas over the same period and find that the gender- and electoral-based patterns do not appear, offering further evidence the increase in abortion attention is due to *Dobbs*. This effect persists through the 119th Congress (2025) and is substantively larger than changes in congressional attention following other high-profile court cases or political movements.¹ Our findings are also robust to an alternative measure of congressional issue attention: cosponsorship of abortion-related bills. These results demonstrate that landmark judicial decisions can reshape congressional attention, but not uniformly. In the case of *Dobbs*, legislators reallocated attention selectively according to the interaction between gender-linked representational incentives and partisan electoral considerations.

Research Design

We identify whether nearly 1.6 million committee hearing statements drawn from 17,408 hearings in the U.S. House of Representatives across the 105th through the 119th Congresses reference abortion (Park 2021; Lollis 2025). Our dataset includes all hearings in the 105th–118th Congresses and all hearings held on or before April 29, 2025, in the 119th Congress (the date of collection). To label statements, we employ a bigram dictionary classification method (Lollis 2025). First, we created a training set of randomly sampled statements ($n = 20,000$) and prompted GPT-5 to label whether each referenced abortion.² Human coders labeled a 2,000-statement subset of the train-

¹To benchmark the substantive effect of our findings, we use a parsimonious dictionary of LGBTQ and racial issues to compare changes in congressional attention before and after *Obergefell v. Hodges* (2015) and Black Lives Matter. The increase in attention to abortion after *Dobbs* exceeds the changes observed for LGBTQ or racial justice issues. See Appendix Section “Contextualizing Magnitude of Effect” for more information.

²Recent work demonstrates that GPT-5 outperforms human coders on complex text-classification tasks, including identifying relevance, stance, topics, and framing (Gilardi, Alizadeh and Kubli 2023).

ing set, confirming that GPT-5 correctly classified abortion statements (AUC = 0.94)³. We then extracted abortion bigrams (n = 1,829)—two-word sequences that indicate abortion (e.g., `pro life`, `abortion ban`, `planned parenthood`)—from the positive training statements and used this dictionary to classify the full corpus.⁴ Comparing GPT-5-coded and bigram-predicted labels in a held-out validation set confirms that the classifier accurately identified abortion statements in the full corpus (AUC = 0.95).⁵ In total, the bigram classifier identified 5,036 abortion statements. We construct two measures capturing the proportion of legislators’ committee statements referencing abortion:

- ***Attention to Abortion (Pre-Post Dobbs)***: measures the proportion of a legislator’s hearing statements that reference abortion before and after the *Dobbs* decision leaked.
- ***Attention to Abortion (by Term)***: measures the proportion of a legislator’s hearing statements that reference abortion in each congressional term.

We estimate DiD models with two specifications—(i) a pre–post model with legislator fixed effects and (ii) a two-way fixed effects (TWFE) model with legislator and congressional-term fixed effects—to assess how legislators’ attention to abortion changed following *Dobbs*. In our design, *Dobbs* treated all legislators. As a result, the causal estimand is the average difference in the change in abortion attention from the pre- to post-*Dobbs* period between Democrats and Republicans, estimated separately for female and male legislators. Our estimate should be interpreted as a relative difference rather than an absolute causal effect. The primary identification threat to our

³The Area Under the Curve (AUC) measures how well a model distinguishes between positive and negative labels; a value of 1.0 indicates perfect classification.

⁴Since we are interested in congressional attention to abortion, we measure the volume of statements, not their policy direction or tone. Given that parties are internally united in their abortion policy stances (Swers 2023), we suspect that most Republicans’ statements favor restricting abortion access while Democrats’ statements favor expanding it.

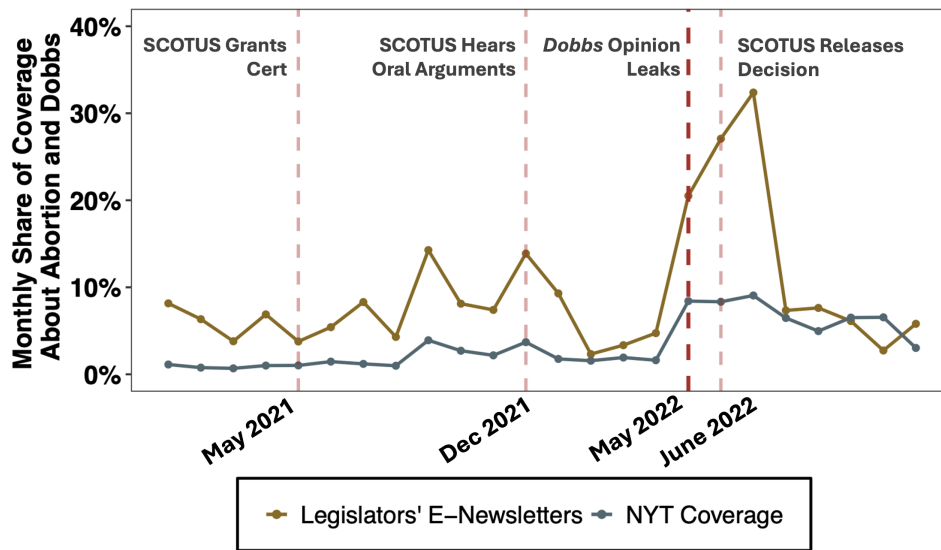
⁵Additional validation for the bigram dictionary classifier appears in Appendix Section “Labeling Abortion Statements.”

design, given that we do not estimate the absolute causal effect, is that another factor could have driven shifts in issue attention across multiple policy areas at the same time. To address this, we examine six non-abortion policy areas and find no comparable shifts, providing reassurance that the observed changes are specifically attributable to *Dobbs*.⁶

The treatment date is May 2, 2022, when the draft opinion in *Dobbs* leaked. Before the leak, legislators could not have responded to the ruling's content because it was not publicly known. To confirm that legislators were treated by the leak rather than when the Court released its decision (June 24, 2022), we compiled the monthly share of *New York Times* (NYT) articles referencing "abortion" or "*Dobbs v. Jackson*," as well as the monthly share of legislators' e-newsletters referencing the same terms (Cormack 2025). NYT coverage of abortion captures when legislators were most likely to learn about the content of the *Dobbs* decision, while legislators' e-newsletters indicate whether legislators transmitted that information to constituents, offering behavioral evidence of treatment. If legislators were treated by the leaked decision, the initial spike in coverage and constituent communication should occur in May 2022. Figure 1 confirms this pattern: from April to May 2022, NYT abortion coverage rose by 6.8 percentage points (a 425% increase), and legislators' mentions of abortion in their e-newsletters rose by 19.8 percentage points (a 421% increase).

⁶See Appendix Section "Placebo Test: Non-Abortion Issue Areas."

Figure 1: Determining Treatment Date—NYT Coverage and Legislators’ Newsletters Referencing Abortion



Note: Monthly share of congressional electronic newsletters sent to constituents (N = 25,680) and *New York Times* articles (N = 182,329), from January 2021 through December 2022 that reference “abortion” or “*Dobbs v. Jackson*”. Abortion coverage from both sources rose sharply after the leak, indicating that the disclosure of the draft opinion—not the final decision—informed legislators of the ruling.

In the DiD models, the dependent variable is the proportion of a legislator’s committee hearing statements that reference abortion. The independent variable is an interaction between a post-*Dobbs* indicator and a Democratic Party indicator. Models are estimated separately by gender. In the pre-post specification, each legislator contributes two observations: the proportion of statements referencing abortion before and after *Dobbs*. In the TWFE specification, the unit of analysis is at the legislator-term level, with both legislator and congressional-term fixed effects.

We estimate a TWFE DiD model alongside the pre-post specification, despite a single (non-staggered) treatment date, for two reasons. First, term fixed effects absorb cross-term differences in statement volume, which is necessary given that the pre-post model pools more pre-treatment terms (12) than post-treatment terms (3). Second, term fixed effects adjust for time-varying shocks across congressional terms that could confound pre-post estimates. With a single treatment date, our TWFE DiD is not subject to the heterogeneous-effects bias concerns that arise in staggered-

adoption designs (Hassell and Holbein 2025). Models are estimated with OLS and robust standard errors clustered by legislator.⁷

Identification in DiD designs hinges on the assumption that the groups of interest exhibit no pre-treatment differences—or, if differences exist, that these differences follow parallel trends. To evaluate whether this assumption holds in our research design, we conduct four complementary tests, reported in Figure 2 (Hassell and Holbein 2025).⁸ Panel A reports term-specific, pre-*Dobbs* TWFE DiD estimates of the party gap in abortion-related statements, using the 105th Congress as the reference category. There are no statistically significant party differences in the proportion of abortion statements by gender in any pre-*Dobbs* term. Panel B examines whether variation in abortion references by party and gender emerges in the 16 months leading up to the decision, plotting TWFE DiD estimates over this period. January 2021 is the reference category. Again, there are no systematic pre-*Dobbs* differences. Panel C assesses pre-*Dobbs* differences by randomly assigning treatment dates prior to the decision and estimating party differences in pre-post DiD models by gender. Across 2,000 simulations, 98% of p-values on the interaction term of interest (Democrat x Post Dobbs) were not statistically significant, indicating that no party-based differences emerged in abortion references before the leaked decision. Finally, Panel D plots term-based lagged TWFE estimates of party differences in abortion references by gender. None of the lagged interactions are statistically significant, indicating that the effect did not emerge before the leak. Collectively, all four tests provide strong evidence that parallel trends hold for our research design.

Results

Table 1 reports estimates for both DiD model specifications; results are consistent across models. In the pre–post specification, female Republicans’ share of statements referencing abortion decreases by 0.87 percentage points after *Dobbs*, while female Democrats’ share increases by 1.32

⁷To ensure that committee selection effects or committee-specific issue agendas do not confound our findings, we estimate models including committee fixed effects (see Appendix Table 3). Results remain substantively unchanged.

⁸For a more exhaustive discussion of DiD assumptions and parallel trends for our research design, see Appendix Section “Difference-in-Differences Design”.

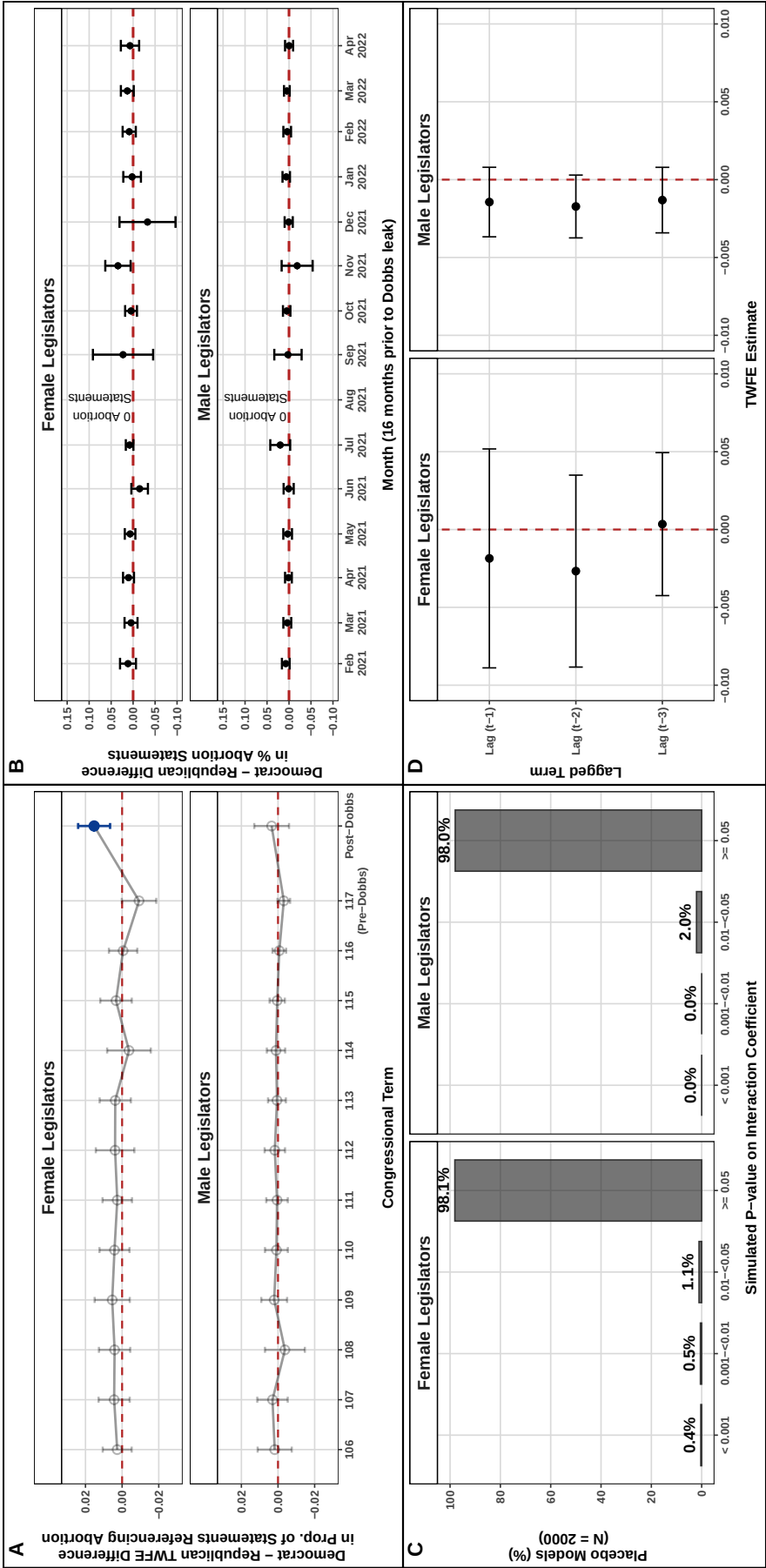
percentage points. This yields a party-based difference among female legislators after *Dobbs*, reported as the Post *Dobbs* $\times$ Democrat interaction, of 2.19 percentage points ($p = 0.000$). In the TWFE model, the estimated increase in female Democrats' abortion references after *Dobbs* is 0.8 percentage points ($p = 0.02$). Both of these models suggest that, relative to female Republicans, female Democrats increased their attention to abortion post-*Dobbs*. Further, across both model specifications subset to include only male legislators, the difference between Democrat and Republican legislators is not statistically significant. Results are substantively unchanged when adding committee fixed effects (alongside legislator and term fixed effects), indicating that neither committee selection effects nor committee-level hearing agendas confound our findings.⁹

To provide additional reassurance that the observed changes in abortion attention are specific to *Dobbs*, we examine six non-abortion policy areas over the same period. If broader shifts in overall issue attention were driving the results, we would expect similar gender- and party-based divergences across other issues. We find no such patterns: estimates for female and male legislators alike are not statistically significant. These placebo tests support our interpretation that the *Dobbs* decision specifically drove the increase in abortion attention among female Democrats.¹⁰

⁹See Appendix Table 3

¹⁰See Appendix Section “Placebo Tests: Non-Abortion Issue Areas”

Figure 2: Assessing Parallel Trends



Note: Panels A–D assess the validity of the parallel trends assumption for our research design. Panel A plots the party-based difference in abortion references using a TWFE model by gender. Panel B presents a 16-month event study reporting party-based differences using a TWFE model estimated by gender. Panel C shows estimated p-values from a simulation in which the treatment date is randomly assigned to 2,000 different pre-*Dobbs* dates. Panel D reports term-based lagged estimates from a TWFE model. Results indicate the parallel trends assumption is met for our research design.

Table 1: DiD Estimates of Party-Based Changes in Abortion Attention Before and After *Dobbs* by Gender

	Female Legislators		Male Legislators	
	Pre-Post	TWFE	Pre-Post	TWFE
<i>Post-Dobbs</i>	-0.009* (0.004)	-0.010* (0.004)	0.005* (0.003)	-0.004 (0.003)
Democrat	-0.008** (0.003)	-0.009* (0.004)	0.009*** (0.003)	-0.003** (0.001)
<i>Post-Dobbs</i> × Democrat	0.022*** (0.005)	0.008* (0.004)	0.004 (0.005)	-0.000 (0.001)
Intercept	0.010*** (0.002)	0.010* (0.004)	0.01*** (0.001)	0.004 (0.003)
Observations	226	1117	562	4562
Adjusted R^2	0.58	0.40	0.52	0.29
Legislator FE	Yes	Yes	Yes	Yes
Term FE	No	Yes	No	Yes

Note: OLS estimates report the interaction effect of party after *Dobbs* by gender based on pre–post and two-way fixed-effects (TWFE) difference-in-differences models. After *Dobbs*, female Democrats increased their attention to abortion by two percentage points, while effects among male legislators were not statistically significant. The model includes robust standard errors clustered by legislator (printed in parentheses). * $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$.

Using pre-*Dobbs* statement volume to benchmark the substantive per-member effects, the model estimates suggest that the average female Democrat makes about 24 additional abortion statements per term after *Dobbs*, while the average female Republican makes about 4 fewer. At the party level, female Democrats collectively made nearly 300 additional abortion statements and female Republicans 100 fewer.¹¹ To benchmark the magnitude of this effect against other landmark court decisions and political events, legislators’ attention to abortion after *Dobbs* exceeds the party- and gender-based shifts in attention to LGBTQ and racial justice issues after *Obergefell* and Black Lives Matter, respectively.¹²

We assess the durability of these effects by estimating separate pre–post DiD models for each

¹¹Although we use hearing statements to measure legislators’ attention to abortion, we do not establish whether increased attention translates into substantive policy change. Increased attention to abortion in hearings may not correlate with effective lawmaking on the issue.

¹²See Appendix Table 10

post-*Dobbs* Congress: the latter half of the 117th, all of the 118th, and the portion of the 119th in our corpus. We then conduct Wald tests of (i) joint significance of all post-*Dobbs* interactions and (ii) equality of effects across the three post-*Dobbs* periods. Consistent with our results, the joint post-*Dobbs* effect is statistically significant for female legislators (Wald $\chi^2(3) = 12.88, p = 0.004$) and not statistically significant for male legislators ($\chi^2(3) = 4.01, p = 0.26$). Effects are not statistically distinguishable across the three post-*Dobbs* periods for both female and male legislators (Female Legislators: $\chi^2(2) = 0.45, p = 0.80$; Male Legislators: $\chi^2(2) = 3.93, p = 0.14$), indicating that the treatment effect among female Democrats persists through the 119th Congress without detectable decay and is absent among male legislators.¹³ Results are robust when using cosponsorship as an alternative measure of attention: after *Dobbs*, female Democrats cosponsored more abortion bills than female Republicans, with no comparable change among male legislators.¹⁴

Conclusions

This paper demonstrates that landmark Supreme Court rulings can reshape congressional issue attention, but that those effects are selective rather than uniform. Female Democrats, whose identity-based motivations aligned with partisan electoral interests, drove the increase in attention to abortion following *Dobbs*. Female Republicans faced a tension between gender-linked representational incentives and party-aligned electoral constraints, which muted their attention to abortion relative to female Democrats, while male legislators lacked comparable gender-linked incentives. More broadly, these findings suggest that legislative responses to major judicial interventions depend on how descriptive identities intersect with partisan electoral goals.

Understanding whether and how legislators respond to *Dobbs* matters for several reasons. First, *Dobbs* is a case in which the Court moved policy away from majority opinion on abortion (Jessee, Malhotra and Sen 2022; Clark et al. 2024). Whether, and which, legislators respond when the Court retrenches rights supported by most Americans speaks directly to Congress’s capacity to represent public opinion. Second, our findings highlight the constraints descriptive representatives

¹³See Appendix Section “Durability of DiD Effects”

¹⁴See Appendix Table 11

face when parties strongly structure behavior: when identity-based incentives and partisan goals conflict, responsiveness on identity-linked issues may be muted. Female Republicans exemplify this dynamic. Despite having a clear gender-linked representational incentive to elevate abortion, their party-aligned electoral constraints curtailed that attention. Future research should examine whether similar patterns emerge in state legislatures, which now hold primary policymaking authority over abortion.

References

- Clark, Chelsey S, Elizabeth Levy Paluck, Sean J Westwood, Maya Sen, Neil Malhotra and Stephen Jessee. 2024. “Effects of a US Supreme Court ruling to restrict abortion rights.” *Nature Human Behaviour* 8(1):63–71.
- Cormack, Lindsey. 2025. “DCinbox.” <https://www.dcinbox.com>. Accessed 2025-11-12.
- Gardner, Graham, Kayleigh McCrary and Melissa K Spencer. 2025. “Abortion Ballot Measures Affect Election Outcomes.” *Economics Letters* 247:112182.
- Gibson, James L. 2025. “Do the effects of unpopular Supreme Court rulings linger? The Dobbs decision rescinding abortion rights.” *American Political Science Review* 119(1):500–507.
- Gilardi, Fabrizio, Meysam Alizadeh and Maël Kubli. 2023. “ChatGPT outperforms crowd workers for text-annotation tasks.” *Proceedings of the National Academy of Sciences* 120(30):e2305016120.
- Hassell, Hans JG and John B Holbein. 2025. “Navigating potential pitfalls in difference-in-differences designs: reconciling conflicting findings on mass shootings’ effect on electoral outcomes.” *American Political Science Review* 119(1):240–260.
- Jessee, Stephen, Neil Malhotra and Maya Sen. 2022. “A Decade-Long Longitudinal Survey Shows that the Supreme Court has Become Much More Conservative than the Public.” *Proceedings of the National Academy of Sciences* 119(24).
- Lawless, Jennifer L. 2015. “Female candidates and legislators.” *Annual Review of Political Science* 18(1):349–366.
- Levendusky, Matthew, Shawn Patterson Jr, Michele Margolis, Josh Pasek, Kenneth Winneg and

- Kathleen H Jamieson. 2024. “Has the Supreme Court become just another political branch? Public perceptions of court approval and legitimacy in a post-Dobbs world.” *Science Advances* 10(10):eadk9590.
- Lollis, Jacob M. 2025. “Race, Contact Effects, and Effective Lawmaking in Congressional Committee Hearings.” *Political Research Quarterly* 78(1):102–119.
- Mayhew, David R. 2004. *Congress: The Electoral Connection*. Yale University Press.
- Meisels, Mellissa. 2025. “Strategic campaign attention to abortion before and after Dobbs.” *Proceedings of the National Academy of Sciences* 122(20):e2503080122.
- Park, Ju Yeon. 2021. “When do politicians grandstand? Measuring message politics in committee hearings.” *The Journal of Politics* 83(1):214–228.
- Simonovits, Gabor, David Doherty and Alexander Bor. 2025. “Federalism and Representation: Evidence from State Abortion Laws in the Aftermath of Dobbs vs. Jackson Women’s Health Organization.” *PNAS nexus* 4(5):pgaf125.
- Swers, Michele L. 2023. After Dobbs: The Partisan and Gender Dynamics of Legislating on Abortion in Congress. In *The Forum*. Vol. 21 De Gruyter pp. 261–285.